

23CHCV01933 23CHCV01933

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-06-26

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Case Number: 23CHCV01933 Hearing Date: June 26, 2026 Dept: F46

Dept. F-46

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(1) DEFENDANT'S MOTION TO DEEM ADMITTED THE TRUTH OF
MATTERS SPECIFIED IN REQUESTS FOR ADMISSION, SET TWO, AND FOR MONETARY
SANCTIONS

(2) DEFENDANT'S MOTION TO COMPEL RESPONSE TO FORM
INTERROGATORY 17.1

Motions filed on June 9, 2026.

MOVING PARTY: Defendant Adam Clint.

RESPONDING PARTY: Plaintiff Robert Pope.

NOTICE: OK.

RELIEF REQUESTED: Defendant moves for an order deeming
admitted the truth of the matters specified in Requests for Admission, Set Two,
an order compelling Plaintiff to serve a verified response, without objections,
to Form Interrogatory 17.1, and monetary sanctions.

RULING: Denied. Sanctions denied.

BACKGROUND

On July 3, 2023, Plaintiff Robert Pope filed this action against Defendant Adam Clint and Does 1 to 50.

On November 7, 2025, the Court signed and filed the parties' Stipulation and Order re: Continuance of Final Status Conference and Trial Dates. The order continued the Final Status Conference from January 22, 2026 to June 26, 2026 and trial from February 2, 2026 to July 6, 2026.

On March 25, 2026, Plaintiff filed a substitution of attorney and is self-represented.

On March 25, 2026, Defendant served Requests for Admission, Set Two, and Form Interrogatory 17.1 on Plaintiff. (Haney Decl. [RFA] ¶ 3, Ex. 1; Haney Decl. [FROG] ¶ 3, Ex. 1.) Responses were due April 29, 2026. (Haney Decl. [RFA] ¶ 4; Haney Decl. [FROG] ¶ 4.) Plaintiff did not serve responses. (Haney Decl. [RFA] ¶ 5; Haney Decl. [FROG] ¶ 5.)

On May 29, 2026, Defendant demanded responses. (Haney Decl. [RFA] ¶ 6, Ex. 3; Haney Decl. [FROG] ¶ 6, Ex. 3.) Plaintiff requested an extension to July 24, 2026. (Haney Decl. [RFA] ¶ 7, Ex. 4; Haney Decl. [FROG] ¶ 7, Ex. 4.) Defendant declined the extension on May 30, 2026. (Haney Decl. [RFA] ¶ 8, Ex. 5; Haney Decl. [FROG] ¶ 8, Ex. 5.)

Defendant filed these motions on June 9, 2026. The motion to deem Requests for Admission, Set Two, admitted was set for hearing on July 13, 2026. The motion to compel response to Form Interrogatory 17.1 was set for hearing on July 14, 2026.

On June 10, 2026, Defendant filed an ex parte application to shorten time, requesting that both motions be heard on June 19, 2026. Because Department F-46 was dark on June 19, 2026, Department F-43 heard the application as the covering department. On June 11, 2026, Department F-43 granted the application in part and advanced both hearings to June 26, 2026.

No opposition was filed.

Trial is set for July 6, 2026.

DISCUSSION

The Discovery Act imposes two separate cutoffs. Unless otherwise ordered, discovery must be completed 30 days before the date initially set for trial, and discovery motions must be heard no later than 15 days before the date initially set for trial. (Code Civ. Proc., § 2024.020, subd. (a).) A continuance or postponement of trial does not reopen discovery except as provided in Code of Civil Procedure section 2024.050. (Id., subd. (b).)

Code of Civil Procedure section 2024.050 permits the Court, on motion, to grant leave to complete discovery, have a discovery motion heard closer to trial, or reopen discovery after a new trial date has been set. (Code Civ. Proc., § 2024.050, subd. (a).) The motion must be accompanied by a meet-and-confer declaration. (Ibid.) The Court considers the necessity and reasons for the discovery, diligence, the reasons the motion was not heard earlier, the effect on trial, prejudice, and the time elapsed between the prior and current trial dates. (Id., subd. (b)(1)-(4).)

Under Section 2024.050, when a party does not file a motion for leave to reopen discovery so that its motion to compel could be heard after the discovery motion cutoff date, then the motion to compel cannot be heard. (Pelton-Shepherd Industries, Inc. v. Delta Packaging Products, Inc. (2008) 165 Cal.App.4th 1568, 1571, 1586-1588.)

Here, the discovery-motion cutoff was June 22, 2026. The present motions are being heard on June 26, 2026, after that cutoff.

Defendant's ex parte application sought only to advance the hearing dates to June 19, 2026, before the cutoff. Department F-43 granted that application in part and set the hearings for June 26, 2026 instead. That order did not constitute, and was not sought as, relief under section 2024.050.

No separate ex parte application or motion under section 2024.050 has been filed by any party. (Code Civ. Proc., § 2024.050, subd. (a).) No meet-and-confer declaration addressing such relief has been submitted. (Id.) None of the statutory factors, including necessity, diligence, the effect on trial, prejudice, or the time elapsed between the February 2, 2026 and July 6, 2026 trial dates, have been presented to the Court for consideration. (Id., subd. (b)(1)-(4).)

Accordingly, the Court declines to reach the merits of the motions.

CONCLUSION

Defendant's Motion to Deem Admitted the Truth of Matters Specified in Requests for Admission, Set Two, is DENIED.

Defendant's Motion to Compel Response to Form Interrogatory 17.1 is DENIED.

Defendant's request for monetary sanctions is DENIED.